



# **Telecommunications (Consumer Protection and Service Standards) Amendment (National Relay Service) Act 2005**

**No. 24, 2005**

**An Act to amend the *Telecommunications  
(Consumer Protection and Service Standards) Act  
1999*, and for related purposes**

Note: An electronic version of this Act is available in SCALEplus  
(<http://scaleplus.law.gov.au/html/comact/browse/TOCN.htm>)



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**No. 24, 2005**

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**An Act to amend the *Telecommunications  
(Consumer Protection and Service Standards) Act  
1999*, and for related purposes**

*[Assented to 21 March 2005]*

The Parliament of Australia enacts:

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## 1 Short title

This Act may be cited as the *Telecommunications (Consumer Protection and Service Standards) Amendment (National Relay Service) Act 2005*.

## 2 Commencement

- (1) Each provision of this Act specified in column 1 of the table commences, or is taken to have commenced, in accordance with column 2 of the table. Any other statement in column 2 has effect according to its terms.

| Commencement information                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |                   |
|---------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|
| Column 1                                                                        | Column 2                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | Column 3          |
| Provision(s)                                                                    | Commencement                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | Date/Details      |
| 1. Sections 1 to 3 and anything in this Act not elsewhere covered by this table | The day on which this Act receives the Royal Assent.                                                                                                                                                                                                                                                                                                                                                                                                                                                             | 21 March 2005     |
| 2. Schedule 1, Part 1                                                           | The day on which this Act receives the Royal Assent.                                                                                                                                                                                                                                                                                                                                                                                                                                                             | 21 March 2005     |
| 3. Schedule 1, Part 2                                                           | Immediately after the commencement of item 437 of Schedule 1 to the <i>Financial Framework Legislation Amendment Act 2005</i> .<br><br>However, the provision(s) covered by this table item do not commence at all if:<br>(a) item 437 of Schedule 1 to the <i>Financial Framework Legislation Amendment Act 2005</i> commences before the day on which this Act receives the Royal Assent; or<br>(b) item 437 of Schedule 1 to the <i>Financial Framework Legislation Amendment Act 2005</i> does not commence. | Does not commence |
| Note:                                                                           | This table relates only to the provisions of this Act as originally passed by the Parliament and assented to. It will not be expanded to deal with provisions inserted in this Act after assent.                                                                                                                                                                                                                                                                                                                 |                   |

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- (2) Column 3 of the table contains additional information that is not part of this Act. Information in this column may be added to or edited in any published version of this Act.

### **3 Schedule(s)**

Each Act that is specified in a Schedule to this Act is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this Act has effect according to its terms.

## **Schedule 1—Amendments relating to the National Relay Service**

### **Part 1—Amendments commencing on Royal Assent**

#### ***Telecommunications (Consumer Protection and Service Standards) Act 1999***

##### **1 Section 94 (definition of *NRS contract*)**

Repeal the definition, substitute:

***NRS contract*** means a contract under which the whole, or a part, of the National Relay Service is provided.

##### **2 Section 94 (definition of *NRS provider*)**

Repeal the definition, substitute:

***NRS provider*** means a person who provides the whole, or a part, of the National Relay Service.

##### **3 Paragraph 95(1)(b)**

Repeal the paragraph, substitute:

(b) either:

- (i) is provided by a person under a contract with the Commonwealth; or
- (ii) is provided by 2 or more persons under contracts with the Commonwealth (with each of the persons providing a part of the service).

##### **4 Subsection 95(2)**

Repeal the subsection, substitute:

- (2) Each NRS contract must provide for the relevant NRS provider to prepare service plans for so much of the NRS as is covered by the contract. The service plan must include at least the following matters:
  - (a) timetables for the supply of so much of the NRS as is covered by the contract;



(b) performance standards to be met by the NRS provider.

## **5 Section 96**

Repeal the section, substitute:

### **96 Publication of costs of providing the NRS**

- (1) Before the start of each levy quarter, each NRS provider must give the Minister a written estimate of the total cost of the provider in providing the NRS (or part of the NRS) during the quarter. The estimate must be prepared in accordance with the relevant NRS contract. The Minister must cause to be published in the *Gazette* the total amount notified to the Minister under this subsection for the quarter.
- (2) On or before the 21st day of the third month after the end of each levy quarter, each NRS provider must give the Minister a written statement of the total cost of the provider in providing the NRS (or part of the NRS) during the quarter. The statement must be prepared in accordance with the relevant NRS contract. The Minister must cause to be published in the *Gazette* the total amount notified to the Minister under this subsection for the quarter.

## **6 Subsections 97(1) and (2)**

Omit “the NRS provider”, substitute “each NRS provider”.

## **7 Subsection 100(2) (note)**

Omit “1997”, substitute “1998”.

## **8 Subsection 102(3)**

Omit “the NRS provider under the NRS contract”, substitute “NRS providers under NRS contracts”.

**Schedule 1** Amendments relating to the National Relay Service

**Part 2** Amendments consequential on item 437 of Schedule 1 to the Financial Framework Legislation Amendment Act 2005

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**Part 2—Amendments consequential on item 437 of  
Schedule 1 to the Financial Framework  
Legislation Amendment Act 2005**

***Telecommunications (Consumer Protection and Service  
Standards) Act 1999***

**9 Subsection 102(3)**

Omit “the NRS provider under the NRS contract”, substitute “NRS providers under NRS contracts”.

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*[Minister’s second reading speech made in—  
House of Representatives on 10 February 2005  
Senate on 7 March 2005]*

(01/05)

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